

25STCV22334 25STCV22334

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-06-24

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Case Number: 25STCV22334 Hearing Date: June 24, 2026 Dept: 406

JUAN RIVERA,

Plaintiff,

v.

OHLA USA, INC., et al.,

Defendants.

Case No.: 25STCV22334

Hearing Date: June 24, 2026

[TENTATIVE]

order RE:

plaintiff's motions to compel further

responses (CRS# 4306, 0276, 3152, 8794)

BACKGROUND

On July 29, 2025, Plaintiff Juan

Rivera filed this action against numerous defendants, asserting causes of

action for violation of FEHA, wrongful termination, defamation, and failure to permit inspection of payroll and personnel records.

On June 1, 2026, Plaintiff filed the

instant four motions (CRS# 4306, 0276, 3152, 8794) to compel Defendant Ohla USA, Inc.'s

further responses to form interrogatories, special interrogatories, and

requests for production. Defendant filed notices of non-opposition on June 11,

2026.

The motions concerning special

interrogatories (CRS# 3152) and requests for production (CRS# 8794) were

originally set for June 26, 2026. However, given the identity of the issues,

CRS# 3152 and 8794 are advanced and heard on this date.

LEGAL STANDARD

Upon receiving responses to its discovery

requests, the propounding party may move for an order compelling further

responses if the responses are incomplete or evasive, or objections are without

merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a),

2033.290(a).)

A party "is entitled to demand answers to

its interrogatories, as a matter of right . . . [and] the burden of justifying

any objection and failure to respond remains at all times with the party

resisting an interrogatory.” (Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 541.) By contrast, the party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (Ibid.)

MEET AND CONFER

A motion to compel further must be accompanied by a meet and confer declaration demonstrating an attempt to resolve the matter informally. (Code Civ. Proc., §§ 2030.300(b)(1), 2031.310(b), 2033.290(b).) The Court finds that Plaintiff has satisfied the meet and confer requirement. (See Guardado Decl.)

DISCUSSION

Plaintiff’s motions and separate statements set forth good cause for the requested information and demonstrate Defendant’s inadequate responses. Defendant expressly does not contest this showing. Thus, an order compelling further responses is warranted.

Sanctions are warranted as Defendant’s error caused Plaintiff to incur costs filing the motions. Plaintiff requests \$3,411.44 for each motion (\$550 x 6 hours, plus \$111.44 in costs). (Guardado Decl. ¶¶ 10-12.) The Court finds that \$2,740 (\$500 x 5 hours, plus \$240 in

filing fees) is the reasonable total amount under the circumstances.

CONCLUSION

Plaintiff's motions to compel

further responses are GRANTED. Defendant Ohla USA, Inc. shall provide further

responses to the subject discovery within 15 days of today. The Court sanctions

Defendant and its counsel, jointly and severally, in the amount of \$2,740, to

be paid within 30 days of today.